



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

September 20, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21860

EXPIRATION DATE: 2025-03-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Veolia ES Technical Solutions LLC
Boston, MA
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the one-time, one-way transportation in commerce of unapproved explosives wetted with water originating at UPS facilities located in Hammond, IN and Northbrook, IL and transported to Veolia's waste incinerator for final disposal located in Sauget, Illinois. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.21(b) in that offering forbidden explosives as defined in §173.54 for transportation is not authorized; 49 CFR 173.51 in that offering for transportation or the transport of an explosive material unless it has been tested and classed and approved by the Associate Administrator is not authorized; 49 CFR 173.54(a) in that an explosive that has not been approved in accordance with §173.56 shall not be offered for transportation or transported; and 49 CFR § 173.56(b) in that no person may offer a new explosive for transportation unless that person has had the material examined by an authorized explosives testing agency, classed, and approved by the Associate Administrator, except as specified herein.

Tracking Number: 2024094822

5. BASIS: This emergency special permit is based on the application of Veolia ES Technical Solutions, LLC dated September 13, 2024, submitted in accordance with § 107.117 and the determination that it was necessary to protect life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Waste Substances, explosive, n.o.s.(as appropriate)*	1.4S	UN0481	N/A

*Sodium Nitrate, Sulfur, Carbon

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: This classification is only valid when the explosive substances are diluted with water as specified in the application dated September 13, 2024, and on file with the Office of Hazardous Materials Safety.

(1) Inner packaging: Not more than 8 lbs of loose powder will be placed into a leak-proof non-metallic plastic bag. Water will be added into the bag until the loose powder is fully saturated.

(2) Intermediate packaging: A 5-gallon UN 1H2 drum containing not more than two (2) inner packagings containing the powder that is fully saturated with water.

(3) Outer packaging: A UN 4G fiberboard box rated to the PG I performance level containing one (1) intermediate packaging.

b. OPERATIONAL CONTROLS:

(1) Transportation will be performed by the grantee or a carrier approved by the grantee.

(2) Transportation is only authorized one-time from UPS facilities located in Hammond, IN and Northbrook, IL to Veolia ES Technical Solutions, LLC's disposal facility located in Sauget, IL for disposal. Once the hazardous materials covered under the terms of this special permit are delivered to the disposal facility, further transportation under the terms of this special permit is prohibited.

- (3) No type of oxidizer, fuel, flammable solid or combustible device or item may be transported in the same motor vehicle as packages covered under the terms of this special permit.
 - (4) While in transportation, the cargo carrying portion of the vehicle shall be locked and secured at all times.
 - (5) Only trained Veolia technicians are authorized to prepare the material for shipment and add a sufficient amount of water to the inner packaging to ensure saturation of the powder.
- 8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - 9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
 - 10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
 - 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two

years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: ae